

1 ENGROSSED SENATE
2 BILL NO. 1749

By: Green of the Senate

3 and

4 Turner of the House

5
6 An Act relating to mobile food preparation vehicles;
7 amending Section 1, Chapter 106, O.S.L. 2024, as
8 amended by Section 1, Chapter 342, O.S.L. 2025 (74
9 O.S. Supp. 2025, Section 325.20), which relates to
10 fire code compliance; modifying entity from which to
11 obtain certain permit; requiring promulgation of
12 rules; updating statutory language; and providing an
13 effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY Section 1, Chapter 106, O.S.L.
16 2024, as amended by Section 1, Chapter 342, O.S.L. 2025 (74 O.S.
17 Supp. 2025, Section 325.20), is amended to read as follows:

18 Section 325.20. A. All mobile food preparation vehicles
19 operating within this state prior to July 1, 2024, that are capable
20 of producing smoke or grease-laden vapors shall be in compliance
21 with the most current adopted fire code. With the exception of an
22 automatic fire extinguishing system, such requirement shall apply to
23 vehicles including, but not limited to, vehicles utilizing electric
24 energy, liquefied petroleum gas, compressed natural gas, or a
combination thereof for cooking, provided that portable fire
extinguishers are installed and maintained in accordance with the

1 most current version of NFPA 10: Standard for Portable Fire
2 Extinguishers. A six-liter Class K-rated, portable fire
3 extinguisher is required for all cooking equipment involving solid
4 fuels, vegetable or animal oils and fats, or a combination thereof.
5 All portable fire extinguishers shall be in clear view and
6 immediately available for use.

7 B. All mobile food preparation vehicles utilizing, handling, or
8 transporting liquefied petroleum gas or any liquefied petroleum gas
9 system, equipment, container, apparatus, or appliance shall receive
10 and maintain a permit from, ~~and be inspected annually by, the~~
11 ~~Oklahoma Liquefied Petroleum Gas Administration or its employees, in~~
12 ~~conjunction with the~~ Oklahoma Liquefied Petroleum Gas Board. The
13 Board shall promulgate rules related to such permits, including
14 inspection requirements. The State Fire Marshal ~~issuing~~ shall issue
15 an annual operation permit decal to mobile food preparation
16 vehicles.

17 C. The provisions in subsection A of this section shall expire
18 on January 1, 2026, and all mobile food preparation vehicles shall
19 comply with the most current adopted fire codes set forth by this
20 state.

21 D. Mobile food preparation vehicles shall be under the
22 jurisdiction of the State Fire Marshal for fire and life safety code
23 compliance and shall be inspected annually by the State Fire Marshal
24 to ensure compliance with the latest version of the state-adopted

1 minimum codes for fire and life safety as adopted by the Oklahoma
2 Uniform Building Code Commission. The State Fire Marshal shall
3 coordinate, at minimum, annual inspections conducted:

4 1. Within each of the four quadrants of this state; and

5 2. Twice within each county with a population exceeding four
6 hundred thousand (400,000) according to the latest Federal Decennial
7 Census.

8 E. Upon approval, the State Fire Marshal shall issue an
9 operational permit decal indicating that the vehicle meets the
10 minimum fire and life safety code requirements adopted at the time
11 of inspection.

12 F. Nothing in this section shall prevent:

13 1. The State Fire Marshal from enforcing the minimum fire code
14 requirements as allowed by law and revoking the operations of a
15 mobile food preparation vehicle for cause when such vehicle is
16 determined to be inherently dangerous to the health, safety, or
17 welfare of persons within this state;

18 2. A political subdivision from enforcing the event permits,
19 operational fees, land use regulations, zoning, or other ordinances
20 in relation to the operation of a mobile food preparation vehicle
21 within the boundaries of the political subdivision; or

22 3. The State Department of Health from licensing and regulating
23 mobile food preparation vehicles as provided by the provisions of
24

1 Title 63 of the Oklahoma Statutes and rules promulgated by the State
2 Commissioner of Health.

3 G. The State Fire Marshal may promulgate rules necessary to
4 implement the provisions of this section. Such rules shall have
5 uniform force and effect throughout this state and no political
6 subdivision or other agency shall enact or enforce any fire or life
7 safety code-related ordinances, rules, or other requirements for
8 mobile food preparation vehicles, except in a county with a
9 population exceeding four hundred thousand (400,000) according to
10 the latest Federal Decennial Census.

11 SECTION 2. This act shall become effective November 1, 2026.

12 Passed the Senate the 23rd day of March, 2026.

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Presiding Officer of the Senate

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16 Passed the House of Representatives the ____ day of _____,
17 2026.

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Presiding Officer of the House
of Representatives

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